

VCU327031 Cisneros Renteria, Alicia et al vs. Ford Motor Company, a Delaware corporation

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Division: Civil Law and Motion

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Motion: Motion for Relief from Waiver of Jury Trial

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Re: Cisneros Renteria, Alicia et al vs. Ford Motor Company, a Delaware corporation

Case No.: VCU327031

Date: July 30, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion for Relief from Waiver of Jury Trial

Tentative Ruling: To grant the motion. Fees are to be posted within 10 days.

Facts

In this Magnusson Moss and California UCC matter, the case management conference was initially set for February 17, 2026. At the CMC, counsel for Plaintiffs appeared and trial was set for February 1, 2027. The minute order reflects a jury was requested by Plaintiffs and that Plaintiffs were to post jury fees by February 24, 2026.

Plaintiffs posted the jury fees on April 13, 2026, which were rejected by the Court. (Declaration of Derhartounian ¶¶2, 3.) As to the failure to timely post the fees, counsel states:

"1...However, due to an inadvertence, mistake Plaintiffs' Counsel failed to calendar the due date of the Jury Fees in the firm's task managing system.

...

4. Mr. Derhartounian was assigned the case on or about March 16, 2025 following its prior handling by another attorney at Plaintiffs' counsel's firm Prestige Legal Solutions P.C. ("PLS").

5. Plaintiffs' attorney became aware of the overdue Jury Fees on or about April 13, 2026 and immediately acted and posted the jury fees the very same day." (Declaration of Derhartounian ¶¶1, 4, 5.)

No opposition appears filed.

Authority and Analysis

Code of Civil Procedure section 631 states, in relevant part, the following:

"(a) The right to a trial by jury as declared by Section 16 of Article I of the California Constitution shall be preserved to the parties inviolate. In civil cases, a jury may only be waived pursuant to subdivision (f).

(b) At least one party demanding a jury on each side of a civil case shall pay a nonrefundable fee of one hundred fifty dollars (\$150), unless the fee has been paid by another party on the same side of the case

(c) The fee described in subdivision (b) shall be due on or before the date scheduled for the initial case management conference in the action...

(f) A party waives trial by jury in any of the following ways:

(1) By failing to appear at the trial.

(2) By written consent filed with the clerk or judge.

(3) By oral consent, in open court, entered in the minutes.

(4) By failing to announce that a jury is required, at the time the cause is first set for trial, if it is set upon notice or stipulation, or within five days after notice of setting if it is set without notice or stipulation.

(5) By failing to timely pay the fee described in subdivision (b), unless another party on the same side of the case has paid that fee.

(6) By failing to deposit with the clerk or judge, at the beginning of the second and each succeeding day's session, the sum provided in subdivision (e).

Here, the initial case management conference was set for February 17, 2026, with instructions in the minute order to post fees by February 24, 2026. By failing to pay the jury fee on or before that date, Plaintiff waived jury trial.

Nevertheless, under subsection (g) "The court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury."

The factors for the Court to consider are disputed by each side here. However, the California Supreme Court stated that “[T]he primary consideration is ... whether granting relief from waiver would result in any hardship to other parties or to the court, such as delay in rescheduling the trial for a jury or inconvenience to witnesses. But courts have also regularly considered other factors, including the timeliness of the request; whether the requester is willing to comply with applicable requirements for payment of jury fees; and the reasons supporting the request.” (TriCoast Builders, Inc. v. Fonnegra (2024) 15 Cal.5th 766, 779.)

Further, that “[w]hen a party that has timely given notice that it desires trial by jury then loses the jury right because of technical noncompliance with some element of statutory procedure—such as failure to pay jury fees at the right time or in the right amount—lack of hardship to the other parties or the court is generally controlling, absent other factors that weigh against relief.” (Id. at 782.)

Further, that “Section 631(g) alleviates the harshness of this result by allowing courts to forgive a party's technical noncompliance when the party has fulfilled the core objective of the statute, which is to give timely notice that a jury is demanded. At least in the absence of countervailing factors, courts have generally granted such forgiveness where to do so would not result in hardship.” (Id. at 782-783)

The standard was summarized by the TriCoast opinion as follows:

“Must a trial court always grant relief from a jury waiver if proceeding with a jury would not cause hardship to other parties or to the trial court? We conclude that the answer is no; a trial court's discretion is not so constrained. The presence or absence of hardship is always a primary consideration, and it is often dispositive in cases where the litigant has given timely notice that it desires a jury trial and seeks relief from mere technical statutory waiver, such as failure to post the required jury fee at the correct time or in the correct amount. But a request for relief from jury waiver always calls for consideration of multiple factors in addition to hardship, including the timeliness of the request and the reasons supporting the request.” (Id. at 773-774.)

Plaintiffs indicated a jury trial was desired via the complaint and case management conference statement. Here, although under section 631 jury waiver occurred by the failure to timely post fees, Plaintiff thereafter attempted to post fees and filed this motion for relief from waiver.

On the other hand, the Court has set a court trial pursuant to its availability. Some hardship exists in rescheduling the trial to include a jury.

“In exercising such discretion, courts are mindful of the requirement ‘to resolve doubts in interpreting the waiver provisions of section 631 in favor of a litigant's right to jury trial.’” (Tesoro del Valle Master Homeowners Assn. v. Griffin (2011) 200 Cal.App.4th 619, 638 [quoting Grafton Partners v. Superior Ct. (2005) 36 Cal.4th 944, 956].) Denial of a trial by jury to one constitutionally entitled thereto is “both reversible error and an act in excess of jurisdiction.” (Olivia N. v. Nat'l Broad. Co. (1977) 74 Cal.App.3d 383, 389.)

Given the minimal hardship identified, the waiver's technical nature as to the failure to post fees, the timeliness of the attempt to post fees upon the setting of the court trial, the Court grants the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.